

GOVERNMENT OF THE REPUBLIC OF GUATEMALA  
MINISTRY OF FOREIGN AFFAIRS  
PERMANENT MISSION OF GUATEMALA TO THE ORGANIZATION OF AMERICAN STATES (OAS),  
WASHINGTON, D.C.

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The Permanent Mission of Guatemala to the Organization of American States (OAS) presents its compliments to the honorable Department of International Law of the Secretariat for Legal Affairs of the General Secretariat of the Organization of American States, in its capacity as the Technical Secretariat of the Inter-American Juridical Committee (CJI), in connection with the study on the enforcement of international law in the cyber context within OAS member states.

In that connection, the Permanent Mission of Guatemala hereby encloses note Of. 4VM.200-2019/GJL/lr/bm, in which Mr. Gabriel Juárez Lucas, Fourth Vice Minister of the Interior Ministry of the Republic of Guatemala, responds to the Inter-American Juridical Committee's questionnaire.

The Permanent Mission of Guatemala to the Organization of American States avails itself of this opportunity to reassure the honorable Department of International Law of the Secretariat for Legal Affairs of the General Secretariat of the Organization of American States, in its capacity as the Technical Secretariat of the Inter-American Juridical Committee (CJI), of its highest consideration.

Washington, D.C., July 9, 2019

To the honorable Department of International Law  
General Secretariat of the Organization of American States  
Washington, D.C.



Guatemala City, June 14, 2019  
Of. 4VM.200-2019/GJL/lr/bm

**Luis Toro Utillano**  
**Technical Secretariat**  
**Inter-American Juridical Committee**

I have the honor of writing to you in response to Verbal Note OEA/2.2/14/19 from the Department of International Law of the Secretariat for Legal Affairs, indicating that the Inter-American Juridical Committee is conducting a study into the application of international law in the cyber context within the OAS member States and requesting such information as is deemed opportune by means of the enclosed questionnaire. In that connection, I am pleased to report the following:

- 1. Has your Government previously issued an official paper, speech, or similar statement summarizing how it understands international law applies to cyber operations? Please provide copies or links to any such statements.**

In line with the efforts that the State of Guatemala has pursued in the area of cybersecurity, in June 2018 the Government of Guatemala launched the National Cybersecurity Strategy. That strategy acknowledges the principle of joint efforts by governments, supported by the dynamism of international organizations, civil society, academia, and the private sector, to promote actions that help create secure venues for participation in cyberspace through transferring, receiving, and exchanging information, knowledge, technologies, experiences, and resources, while respecting the principles of international law and human rights.

In addition, the country is currently processing bill No. 5254, for the Law against Cybercrime, which aims to introduce the domestic regulations necessary to secure effective coercion and showcase the State of Guatemala's intent to adhere to the Budapest Convention on Cybercrime, and which sets the foundations for the creation of a legal framework to strengthen law enforcement in all matters related to cybercrime. This law will take the first steps toward the country's adhesion to the Budapest Convention, which will help create more venues for international collaboration and cooperation with the other member countries.

- 2. Do existing fields of international law (including the prohibition on the use of force, the right of self-defense, international humanitarian law, and human rights) apply to cyberspace? Are there areas where the novelty of cyberspace excludes the application of a particular set of international legal rights or obligations?**

Yes: the current fields of international law apply to the existing proposals and draft legislation, together with the strategies and policies related to national cybersecurity, including the prohibition of the use of force, the right of legitimate defense, international

humanitarian law, and human rights. However, there could be areas where the novelty of cyberspace does preclude the application of certain international rights or obligations.

**3. Can a cyber operation by itself constitute a use of force? Can it constitute an armed attack that triggers a right of self-defense under Article 51 of the UN Charter? Can a cyber operation qualify as a use of force or armed attack without causing the violent effects that have been used to mark such thresholds in past kinetic conflicts?**

Yes: a cyber operation in and of itself can qualify as a use of force, since “use of force” does not exclusively mean physical force; it also covers threats to and violations of the security and protection of third parties. Although they are not weapons as we commonly understand them, cyber channels can be used to deploy weapons or measures with a similar — or even greater — impact than that obtained with kinetic weapons. Thought must be given to expanding our concept of the term “weapon,” in order to see them in the light of their consequences and not that of the physical components with which they are built. In light of the foregoing, we believe that there is a right of legitimate defense against a cyber attack or operation against a country’s sovereignty. This is because the consequences thereof can be greater and more lasting, in that they threaten such sectors as health, security, and others. In addition, because of the consequences they can produce — such as death, anxiety, and poverty — they should be considered violent.

**4. Outside of armed conflicts, when would a State be responsible for the cyber operations of a non-State actor? What levels of control or involvement must a State have with respect to the non-State actor’s operations to trigger the international legal responsibility of that State?**

Failing to take due diligence into account would make a State responsible. States must work to ensure that their territory is not used by non-State actors for the illegal use of information and communications technologies. They must not knowingly allow their territory to be used for internationally illicit acts using information and communications technologies. They must also strive to ensure their territory is not used by non-State actors so they are not internationally complicit in illicit actions. Due diligence derives from the principle of sovereignty, and so each State should exert the control necessary to halt all harmful activities within its territory and be obliged to take preventive measures, establish a CERT, adopt information security policies, and raise awareness about information security.

However, since “cyberspace” is a very broad term, performing due diligence is extremely complicated.

**5. Are the standards of State responsibility the same or different in the context of an armed conflict as that term is defined in Articles 2 and 3 common to the 1949 Geneva Conventions?**

Because Guatemala ratified the 1949 Geneva Conventions as part of the different treaties

governing international humanitarian law, it holds that all States that have ratified the Conventions must abide by them when an armed conflict arises in their territories. However, international forums must continue their discussions on the uniquely different aspects that a conflict in cyberspace would entail, particularly regarding such issues as attribution and territorial considerations relating to cyber attacks or conflicts.

- 6. Under international humanitarian law, can a cyber operation qualify as an “attack” for the rules governing the conduct of hostilities if it does not cause death, injury or direct physical harm to the targeted computer system or the infrastructure it supports? Could a cyber operation that produces only a loss of functionality, for example, qualify as an attack? If so, in which cases?**

A cyber operation can be considered an attack; attention must be paid, however, to the rules of proportionality — in other words, the cyber attack must be expected to cause an incidental loss of civilian life, civilian injuries, harm to civilians or property, or a combination thereof. That includes those cyber operations that only produce a loss of functionality. Once again, however, clear responsibility for the attack must be established, which, in cyber operations, is by no means an easy task.

- 7. Is a cyber operation that only targets data governed by the international humanitarian law obligation to direct attacks only against military objectives and not against civilian objects?**

International humanitarian law applies whenever a cyber attack is perpetrated in the course of an armed conflict. The parties in the conflict must at all times distinguish between combatants and the civilian population, and between military targets and civilian objects, and accordingly direct their operations against military targets only.

- 8. Is sovereignty a discrete rule of international law that prohibits States from engaging in specific cyber operations? If so, does that prohibition cover cyber operations that fall below the use of force threshold and which do not otherwise violate the duty of non-intervention?**

Sovereignty in relations between States means independence with respect to a part of the world; it is the right to exercise it therein, with the exclusion of any other State. Consequently, a State participating in a specific cyber operations violates a country's sovereignty if, in the course of a cyber attack, it takes certain information from another State's cyber realm, even when no harm that could affect equipment or the human rights of a person or persons is caused.

- 9. Does due diligence qualify as a rule of international law that States must follow in exercising sovereignty over the information and communication technologies in their territory or under the control of their nationals?**

States must work to ensure that their territories are not used by non-State actors for the



illegal use of information and communications technologies.

A state must not knowingly allow its territory to be used for internationally illicit actions using information and communications technologies, be they committed by the State apparatus or by a non-State actor.

However, since “cyberspace” is a very broad term, performing due diligence is extremely complicated.

**10. Are there other rules of international law that your government believes are important to highlight in assessing the regulation of cyber operations by States or actors for which a State is internationally responsible?**

Other rules of international law that the Government of Guatemala believes should be taken into account by States in assessing the regulation of cyber operations include the Budapest Convention on Cybercrime and the Tallinn 2.0 Manual on the International Law Applicable to Cyber Warfare. Those instruments describe ways to harmonize domestic laws, improve investigation techniques, and step up cooperation among nations.

Thanking you for the attention paid hereto, I avail myself of the opportunity to reassure you of my highest consideration.

Gabriel Juárez Lucas  
Fourth Vice Minister  
Interior Ministry

CC: File